

# **Sri Mritunjoy Pathak vs Smt. Kakali Pathak on 26 November, 2014**

**Author: Sanjib Banerjee**

**Bench: Sanjib Banerjee**

1

Sl. 12  
26.11.2014

.

S.d.

C O 3742 of 2014

Sri Mritunjoy Pathak.  
-versus-  
Smt. Kakali Pathak

Mr. Debashis Sur

....for the petitioner.

The husband complains of the amount directed to be paid on account of the alimony pendente lite and litigation expenses on the wife's application under Section 24 of the Hindu Marriage Act, 1955.

Since it is the admitted position that the petitioner's income certificate was not produced before the trial court and the trial court was entitled to draw an adverse inference against the petitioner, there does not appear to be any basis to the petitioner's grievance. The order is well-reasoned and deals with the evidence that was before the court in great detail. The order dated September 15, 2014 does not call for any interference, particularly at the behest of the husband.

CO No. 3742 of 2014 is dismissed, but without any order as to costs.

(Sanjib Banerjee, J.)